

Plant Quarantine and Protection Act, 2007

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 11

Chapter-1

Preliminary

1. Short title and commencement: (1) This Act may be called the "Plant Quarantine and Protection Act, 2064".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Plant" means a living or dead plant or any part thereof, and the term includes stem, branch, bud, graft, bark, root, leaf, fruit, flower, seed and germplasm of a plant.

(b) "Plant product" means unprocessed plant material (including grain) ready for use, or processed plant material ready for use which, due to the nature of processing or any other reason, may introduce or spread pests.

(c) "Other article" means any storage place, packaging, container, vehicle, growing medium such as soil, moss, peat and other similar articles that may harbor or spread disease or insects.

amended by the first amendment.(d) "Pest" means any organism, including plants, animals or disease-causing microorganisms, that injures plants or plant products, and the term also includes species, subspecies, strains and biotypes of microorganisms.

amended by the first amendment.(e) "Regulated pest" means a pest specified by the Ministry by publishing a notice in the Nepal Gazette as causing economic injury to plants or plant products, and the term includes quarantine pests and regulated non-quarantine pests.

amended by the first amendment.(f) "Quarantine pest" means a pest of economic importance not present in Nepal, or present but not widely distributed and being controlled.

added by the first amendment.(f1) "Regulated non-quarantine pest" means a pest whose presence on plants or plant products may cause economic harm to their intended use.

(g) "Beneficial insect" means insects such as bees, silkworms, lac insects.

(h) "Biological control agent" means organisms such as parasites, hyper-parasites, predatory insects used for pest control through biological methods, and the term includes fungi, bacteria, viruses and similar organisms.

(i) "Vehicle" means aircraft, train, truck, cart, horse, mule and other similar means used for the transport of plants, plant products or other articles.

(j) "Container" means any vessel, box, bag or other similar article used or intended for the transport of plants, plant products or other articles.

(k) "Quarantine" means the act of placing such plants, plant products or other articles in a designated place

or as specified by an inspector for observation, testing, inspection, investigation, examination to determine health, and for treatment if not healthy.

(l) "Testing area" means an area designated for completing the plant health testing process.

(m) "Pest area" means an area where the entry of a pest has occurred with the intent of establishing permanence.

(n) "Infestation" means the presence or spread of a pest in a manner causing damage to plants or plant products.

(o) "Inspector" means a person designated pursuant to Section 14.

amended by the first amendment.(p) "Ministry" means the Ministry dealing with agricultural matters.

(q) "Committee" means the Plant Quarantine Committee formed pursuant to Section 3.

(r) "Organization" means the office of the National Plant Protection Organization designated by the Government of Nepal pursuant to Section 6.

(s) "Import permit" means a permit issued pursuant to Section 7.

(t) "Phytosanitary certificate" means a phytosanitary certificate issued pursuant to Section 12.

(u) "Entity" means a firm or organized body registered pursuant to prevailing law.

(v) "Pest risk analysis" means the process for determining regulated pests pursuant to Section 17 for the purpose of importing plants or plant products.

(w) "Endangered area" means an area where environmental conditions are favorable for the establishment of a pest that may cause economic damage to plants or plant products.

(x) "Office" means an office established pursuant to Section 33.

added by the first amendment.(x1) "Head of Office" means the head of an office established pursuant to Section 33.

(y) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

Chapter-2

Provisions relating to Committee and Organization

added by the first amendment.3. Establishment of Committee: (1) There shall be a Plant Quarantine Committee as follows to advise the Government of Nepal on policies related to quarantine of plants and plant products:

(a) Secretary, Ministry - Chairperson

(b) Joint Secretary, Ministry of Industry, Commerce and Supplies (looking after WTO matters) - Member

(c) Joint Secretary, Ministry of Forests and Environment - Member

(d) Director General, Department of Customs - Member

(e) Executive Director, Nepal Agricultural Research Council - Member

(f) Representative, Federation of Nepalese Chambers of Commerce and Industry - Member

(g) Two experts, including at least one woman, nominated by the Government of Nepal - Member

(h) Three persons, including at least one woman, nominated by the Government of Nepal from among

farmers, agribusiness persons or agro-entrepreneurs with relevant experience - Member

(i) Chief, Plant Quarantine and Pesticide Management Center - Member-Secretary

(2) The term of office of nominated members under clauses (g) and (h) of sub-section (1) shall be three years, and they may be renominated once.

(3) Notwithstanding anything written in sub-section (2), the Government of Nepal may remove a nominated member at any time if he/she lacks work capacity, has bad conduct, or fails to perform his/her duties honestly. While removing, a reasonable opportunity to present a defense shall be given. 4. Meeting of the Committee: (1) The meeting of the Committee shall be held on such date, time and place as specified by the Chairperson.

(2) The Chairperson shall preside over the meeting of the Committee, and in the absence of the Chairperson, a member chosen by the members present at the meeting from among themselves shall preside.

(3) If fifty-one percent of the total number of members are present at the meeting, it shall be considered to have fulfilled the quorum.

(4) The opinion of the majority at the meeting shall be considered the decision of the Committee, and in case of a tie, the Chairperson shall have the casting vote.

added by the first amendment.(4a) The Committee may, if it deems necessary, invite technical or subject experts to the meeting of the Committee.

(5) The decision of the Committee shall be certified by the Member-Secretary.

(6) Other procedures relating to the meeting of the Committee shall be as determined by the Committee itself.
amended by the first amendment.5.

6. May designate National Plant Protection Organization: (1) The Government of Nepal may designate, by publishing a notice in the Nepal Gazette, any central level office related to plant protection as the National Plant Protection Organization.

(2) In addition to the functions, duties and powers mentioned elsewhere in this Act, the functions, duties and powers of the Organization shall be as follows:

(a) To prepare standards regarding the health of plants or plant products to be imported or exported and submit them to the Committee for approval,

added by the first amendment.(a1) To prepare a list of regulated pests and, as necessary, review and revise it and submit to the Committee,

(b) To prepare and implement guidelines for testing, examination, inspection and treatment of plants, plant products, biological control agents, beneficial insects and other articles,

added by the first amendment.(b1) To recommend to the Committee on determining fees for export, import, inspection and testing of plants, plant products or other controlled articles,

(c) To identify endangered areas and protect plants and plant products in such areas through quarantine procedures,

(d) To identify pest free areas and areas of low pest prevalence, declare and monitor such areas,

(e) To specify conditions and prohibitions regarding the transport and use of plants, plant products, biological control agents, and beneficial insects,

(f) To act as national coordinator for work related to plants, plant products, beneficial insects, biological

control agents or other articles,

added by the first amendment.(f1) To prepare and submit to the Committee a list of experts related to plant quarantine and plant health,

(g) To implement or cause to be implemented the approved standards regarding health of plants or plant products to be imported or exported,

(h) To make arrangements for mutual recognition of import permits and phytosanitary certificates through coordination with plant health bodies of other countries,

(i) To carry out other functions as prescribed. Chapter-3

Provisions relating to Import Permit, Phytosanitary Certificate and Re-export Certificate

7.

Must obtain Import Permit: (1) Any person or entity wishing to import plants, plant products, biological control agents, beneficial insects or growing media such as soil, moss, peat, etc. shall obtain an import permit under this Act. (2) Conditions and prohibitions regarding the import of plants, plant products, biological control agents, beneficial insects or growing media such as soil, moss, peat, etc. under sub-section (1) shall be as specified by the Ministry by publishing a notice in the Nepal Gazette. (3) Notwithstanding anything written in sub-section (2), if any person brings plants, plant products, biological control agents, beneficial insects or growing media such as soil, moss, peat, etc. for personal or research purposes, the Office may, after charging the prescribed fee and completing the process under this Act, issue an import permit to such person for bringing such plants or plant products into Nepal. 8. Application for Import Permit: (1) Any person or entity wishing to import plants, plant products, biological control agents, beneficial insects or growing media such as soil, moss, peat, etc. under sub-section (1) of Section 7 shall submit an application to the prescribed authority in the prescribed format along with prescribed documents and fee. (2) Upon examining the application received under sub-section (1), if it appears appropriate to grant permission to import such plants, plant products, biological control agents, beneficial insects or growing media such as soil, moss, peat, etc., the prescribed authority shall issue an import permit to the applicant in the prescribed format. (3) If it is not appropriate to issue an import permit under sub-section (2), information to that effect shall be given to the concerned person within seven days. 9. Validity of Import Permit: The validity of an import permit shall be three months. 10. Renewal of Import Permit: (1) Any person or entity wishing to renew an import permit shall submit an application for renewal to the prescribed authority at least seven days before the expiry of the permit. (2) Upon receipt of an application under sub-section (1), the prescribed authority may, after collecting the prescribed fee, renew such import permit for a maximum period of three months. (3) Upon expiry of the validity period, such import permit shall automatically be cancelled. 11. Must obtain Entry Permission: (1) Prior to importing into Nepal plants, plant products, biological control agents, beneficial insects or growing media such as soil, moss, peat, etc. brought to the entry point for import, entry permission must be obtained. (2) The procedure for obtaining entry permission under sub-section (1) shall be as prescribed. 12.

May obtain Phytosanitary Certificate for export or re-export: (1) Any person or entity wishing to export plants, plant products, biological control agents or beneficial insects may obtain a phytosanitary certificate. (2) Any person or entity wishing to re-export to another country plants, plant products, biological control agents or beneficial insects imported into Nepal may obtain a re-export phytosanitary certificate. (3) Any person or entity wishing to obtain a phytosanitary certificate under sub-section (1) or (2) shall submit an application to the prescribed authority in the prescribed format along with the prescribed fee. (4) amended by the first amendment. Upon examining the application received under sub-section (3), if it appears appropriate to issue a phytosanitary certificate, the prescribed authority shall issue a phytosanitary certificate or re-export

phytosanitary certificate in the prescribed format. added by the first amendment.(5) While issuing a phytosanitary certificate under sub-section (4), the e-Phyto system may be applied. Explanation: For the purpose of this sub-section, "e-Phyto" means an electronic phytosanitary certificate prepared so that it can be exchanged between countries through computer software according to international standards for plant health. 13. Must obtain permission to take consignment: (1) If a consignment of plants and plant products or other articles in transit is to be taken to another country through Nepal, the concerned person or entity shall submit an application to the Office in the prescribed format along with the prescribed fee. (2) Upon receipt of an application under sub-section (1), the Office shall examine the documents attached with the application and such consignment. (3) Upon examination under sub-section (2), if such consignment meets the following conditions, the Office shall grant permission to take such consignment to another country via Nepal: (a) The consignment is packaged so that pests cannot escape or spread, (b) The consignment and related documents comply with the import conditions of the destination country for plants or plant products, (c) The consignment is consistent with the phytosanitary certificate, and (d) The transport of the consignment does not cause any adverse effect in Nepal. Chapter-4 Provisions relating to Inspection, Testing and Treatment amended by the first amendment.14.

May designate Inspector: (1) The Ministry may designate as an Inspector an officer posted in the Crop Protection Group of the Nepal Agriculture Service who has at least a bachelor's degree in agricultural science from a recognized educational institution, or an employee of the technical assistant level in the same service group who has at least five years of experience in quarantine related work. (2) If employees in the required number are not available for designation as Inspector under sub-section (1), the Ministry may, in consultation with the provincial government, designate as an Inspector an employee of the provincial service who has at least a bachelor's degree in agricultural science from a recognized educational institution. 15. Functions, duties and powers of Inspector: (1) The functions, duties and powers of an Inspector shall be as follows: (a) To examine and test, as necessary, whether imported plants, plant products, biological control agents, beneficial insects or other articles kept in the testing area, stored or in transit conform to the approved standards, (b) To inspect or test, as prescribed, whether plants, plant products, biological control agents, beneficial insects or other articles to be imported or exported are infested with pests, added by the first amendment.(b1) To ensure, as prescribed, whether wood materials to be exported or imported bear logos according to international standards and are certified, (c) To enter and inspect a testing area, storage place or any other place at any time and, if necessary, search as prescribed, (d) To stop a container or vehicle containing plants, plant products, biological control agents, beneficial insects or other articles at any place if necessary and search at any time, (e) If upon examination or testing under clause (a) or inspection under clause (b) or search under clauses (c) and (d), such plants, plant products, biological control agents, beneficial insects or other articles are found infested, to treat them as necessary or order the concerned person to get them treated, (f) If, upon treatment or causing treatment under clause (e), such plants, plant products, biological control agents, beneficial insects or other articles are not healthy, to take such plants, plant products or articles under control, or destroy as prescribed, or if they need to be returned to the concerned country, immediately inform the Organization and act according to received orders, (g) To prohibit the sale, distribution or use of infested plants, plant products, biological control agents, beneficial insects or other articles, (h) To carry out other functions as prescribed. (2) Other procedures relating to inspection, testing and treatment under sub-section (1) shall be as prescribed. 16.

Fees for inspection, testing and treatment: The fees for inspection, testing or treatment by an Inspector under this Chapter shall be as prescribed by the Ministry by publishing a notice in the Nepal Gazette. Chapter-5 Provisions relating to Pest Control 17. Pest Risk Analysis: (1) The Organization shall conduct pest risk

analysis and determine regulated pests. (2) The Organization shall send the notice of regulated pests determined under sub-section (1) to the Ministry with a recommendation for publication in the Nepal Gazette, and the Ministry shall publish such notice in the Nepal Gazette upon receipt. 18. May give information about Quarantine Pest: If anyone finds or learns of the presence or spread of a quarantine pest in any area, he/she may give such information to the nearest Inspector. 19. May declare Quarantine Pest Affected Area: (1) If a quarantine pest spreads or is likely to spread in any area of Nepal, the Organization may recommend to the Ministry to declare such area as a Quarantine Pest Affected Area. (2) Upon receipt of such recommendation under sub-section (1), the Ministry may, considering the situation mentioned therein, declare a Quarantine Pest Affected Area by publishing a notice in the Nepal Gazette. (3) While declaring a Quarantine Pest Affected Area under sub-section (2), the Ministry shall mention the time, area, reason, activities prohibited in such area, and quarantine conditions. 20.

Pest control in Quarantine Pest Affected Area: (1) To control the quarantine pest in an area declared as a Quarantine Pest Affected Area under Section 19, the Organization may adopt any or all of the following measures: (a) Treat to control such pest, (b) Destroy plants, plant products, biological control agents, beneficial insects or other articles in such area, (c) Prohibit taking plants, plant products, biological control agents or other articles out of such area, (d) Prohibit planting plants or plant products in such area, and (e) Adopt other measures the Organization deems appropriate. (2) If the Organization deems necessary, it may order owners of plants in the Quarantine Pest Affected Area under Section 19 or areas near that area to carry out the work under sub-section (1). (3) To have the order given under sub-section (2) complied with, the Organization shall send a written order to the Inspector of the concerned area. (4) Upon receiving the order under sub-section (3), the concerned Inspector may enter the land containing such plants, plant products, testing area or such plants, plant products, biological control agents, beneficial insects or other articles, and carry out or cause to be carried out the work as per the order given under sub-section (2). (5) If, despite taking utmost care in the course of any action under this Section to control pests, any healthy plant, plant product, biological control agent, beneficial insect or other article of anyone is destroyed, the Organization or the Government of Nepal shall not be liable to bear any liability or pay compensation. 21. Cancellation of declaration of Quarantine Pest Affected Area: (1) The Organization shall monitor from time to time whether the quarantine pest in the area declared as a Quarantine Pest Affected Area under Section 19 has been controlled. (2) If upon monitoring under sub-section (1) the quarantine pest is found to be controlled, the Ministry may, on the recommendation of the Organization, cancel such declaration even before the time mentioned in the declaration under Section 19. Chapter-6 Offenses and Penalties 22.

Deemed to have committed an offense: If anyone does any of the following acts, he/she shall be deemed to have committed an offense under this Act: (a) Importing plants, plant products, biological control agents, beneficial insects or soil without an import permit, except as otherwise provided in this Act, (b) Importing plants, plant products, biological control agents, beneficial insects or soil without a phytosanitary certificate, (c) Violating any order or any prescribed condition given under this Act or rules made under this Act, (d) Importing or bringing infested plants or plant products, (e) Knowingly or negligently bringing infested plants, plant products or other articles into contact with healthy plants, plant products or other articles, (f) Selling or distributing infested plants or plant products, (g) Destroying infested plants, plant products or other articles without following the prescribed procedure, (h) Removing infested plants, plant products or other articles from the quarantine site without the approval of the Inspector or Head of Office, (i) Importing or bringing plants, plant products, biological control agents, beneficial insects or soil through an entry point other than the prescribed entry point, (j) Not allowing search, inspection or sample collection under this Act and rules made under this Act, or obstructing such actions, or (k) Obstructing an Inspector while exercising powers under this

Act. 23. Penalties: A person who commits an offense mentioned in clauses of Section 22 shall be punished as follows: (a) For an offense under clauses (a) and (b), considering the severity of the offense, amended by the first amendment.a fine of ten thousand rupees to fifty thousand rupees. (b) For an offense under clauses (c), (i), (j) or (k), considering the severity of the offense, amended by the first amendment.a fine of twenty-five thousand rupees to fifty thousand rupees. (c) For an offense under clauses (d), (e), (f), (g) or (h), considering the severity of the offense, amended by the first amendment.a fine of fifty thousand rupees to one hundred fifty thousand rupees. (d) A person who violates an order given by the Inspector or Head of Office during inspection, testing or treatment, considering the effects thereof, may be fined by the Head of Office amended by the first amendment.a fine of fifty thousand rupees to one hundred thousand rupees. 24. Confiscation and destruction: If plants, plant products, biological control agents, beneficial insects or other articles imported or transported under this Act are found infested during inspection or testing, they shall be treated to the extent possible and released; if they remain infested even after treatment, such goods shall be confiscated and destroyed. 25.

Bear the expense: All expenses incurred in treating, destroying or returning to the concerned country plants, plant products, biological control agents, beneficial insects or other articles under this Act or rules made under this Act shall be borne by the concerned importer, exporter or person related to such articles. Chapter-7 Miscellaneous 26. May require to deposit amount: (1) If there is reasonable cause to believe that the owner or importer of plants, plant products, biological control agents or beneficial insects might abandon such plants, plant products, beneficial insects or biological control agents, the Office may order such owner or importer to deposit such amount as prescribed in the Office. (2) If the Office has given an order under sub-section (1), such owner or importer shall deposit the amount in the Office, and the Office shall give a receipt to the concerned owner or importer. (3) The amount received under sub-section (2) shall be deposited by the Office in its deposit account. (4) If plants, plant products, biological control agents or beneficial insects kept in the Office under sub-section (1) are not found infested, or if the owner or importer takes them away, or if they are infested and treated or destroyed under this Act, the Office shall return the amount deposited in the deposit account under sub-section (3) to the owner of such goods. (5) Notwithstanding anything written in sub-section (4), if the Office itself treats or destroys such plants, plant products, biological control agents or beneficial insects, only the amount remaining after deducting the expenses incurred in such treatment or destruction shall be returned. 27. Investigation and inquiry of case and diary: (1) Investigation and inquiry of a case related to an offense under this Act shall be conducted by an Inspector. (2) The procedure to be followed during investigation and inquiry under sub-section (1) shall be as prescribed. (3) After completion of investigation and inquiry under sub-section (1), such Inspector shall file the case with the concerned adjudicating authority after obtaining the opinion of the government attorney. (4) Investigation and inquiry under sub-section (1) shall be completed within twenty-five days from the date such investigation and inquiry started. 28. Adjudicating authority: A case related to an offense under this Act shall be conducted and adjudicated by the prescribed authority. 29. Government to be plaintiff: The Government of Nepal shall be the plaintiff in cases under this Act. 30.

Appeal: (1) A person aggrieved by an order given by the Head of Office or Inspector under this Act may appeal to the amended by the first amendment.Head of the Organization under Section 6 within thirty-five days from the date of receiving such order. (2) A person aggrieved by a decision made by the adjudicating authority under this Act may appeal to the concerned amended by the Some Nepal Acts Amendment Act, 2072.District Court within thirty-five days from the date of knowing the decision. 31. Protection of action taken in good faith: No government employee shall be personally liable for any action taken in good faith under this Act. Provided that, the provision of this Section shall not be deemed to affect the consequences arising from

an act done negligently. 32. Customs related functions: Notwithstanding anything written in the prevailing customs law, the concerned customs office shall proceed with customs procedures only after plants, plant products, biological control agents, beneficial insects, other articles, growing media such as soil, moss, peat, etc. imported under this Act have obtained permission to enter Nepal from a Plant Quarantine Check Post or Office. 33. May establish Offices: For the purpose of this Act, the Government of Nepal may, by publishing a notice in the Nepal Gazette, establish Plant Quarantine Check Posts or Quarantine Offices as necessary. 34. Must provide assistance: While acting under this Act, the Inspector and Head of Office may request necessary assistance from Customs, Airport, Airline, Postal, Police, and local administration, and upon such request, the concerned body and authority shall provide necessary assistance. 35. Power to make Rules: The Government of Nepal may make necessary Rules to achieve the objectives of this Act. 35a. May make Procedures: added by the first amendment. The Ministry may, subject to this Act or rules made under this Act, make necessary procedures. 36. Repeal and saving: (1) The Plant Protection Act, 2029 is hereby repealed. (2) All acts and actions performed under the Plant Protection Act, 2029 shall be deemed to have been performed under this Act. (3) Cases pending adjudication or pending decision before the Plant Protection Officer under the Plant Protection Act, 2029, and related petitions, shall, after the commencement of this Act, be transferred to the adjudicating authority under this Act, and such authority shall conduct and adjudicate such cases.